

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 25-29

MAC Industries Inc DBA MAC Container Line,

Complainant,

v.

**COSCO Shipping Lines Co., Ltd.,
COSCO Shipping Lines (North America) Inc.,
COSCO Shipping Lines (India) Private,**

Respondents.

**COMPLAINANT MAC’S RESPONSE TO RESPONDENT
COSCO SHIPPING LINES (INDIA) PRIVATE’S MOTION TO DISMISS**

Pursuant to 46 C.F.R. § 502.70(b) (“Rule 70”), Complainant MAC Industries Inc. dba MAC Container Line (“MAC”) respectfully submits this response to Respondent COSCO Shipping Lines (India) Private Ltd., s/h/a COSCO Shipping Lines (India) Private (“CIN”) Motion to Dismiss Complaint for insufficiency of service of process (“CIN MTD”). The CIN MTD must be denied because the Secretary of the Federal Maritime Commission (“FMC”) has served CIN properly via CIN’s counsel through email and, in the alternative, the CIN MTD is premature because Complainant has not had the opportunity to serve CIN, as is the next step when the Secretary has not completed service on a respondent. The case law in CIN’s own motion requires that the FMC give MAC the opportunity to serve CIN long before dismissal is appropriate.

CIN improperly states that *Samsung Electronics America, Inc. v. OOCL*, Dkt 24-17 (ALJ Order, July 10, 2025) is an “[o]rder granting dismissal of third-party claim.” CIN MTD at 5. The

July 10, 2025 Order referenced in Dkt 24-17 (*id.*) did not dismiss the complaint in that proceeding. Quite the opposite. Samsung's motion to dismiss OOCL's third party complaint was *denied* and OOCL's motion for alternative service was also denied. The ALJ found that Samsung had not been properly served via email, and the ALJ allowed, "[u]nder 46 C.F.R. § 502.113(c)," OOCL to "have a reasonable period of time serve" the third party complaint through the Hague Convention. *Id.* at 7. MAC posits that the same action is appropriate here.

Additionally, the federal district court case law is inapposite because it governs a service system (through FRCP 4; 28 U.S.C. § 1608) that lacks the FMC process that allows service to be completed by the Secretary or by a complainant (46 C.F.R. § 502.113). Further, CIN's case law does not direct dismissal at this stage.

Citing to *Ghazarian v. Republic of Turkey*, Case No. CV 19-4664-PSG (Ex), 2020 WL 3643483 (C.D. Cal. Mar. 30, 2020), CIN argues that dismissal is appropriate here, but demonstrating CIN's premature request for dismissal, in *Ghazarian*, C.D. Cal. provided thirty days for service before dismissal would be appropriate.

CIN's citation to *Castillo v. Hongjin Crown Corp.*, Civil Action No. DR-08-CV-00031-AMLVRG, 2008 WL 11334092, * 2-3 (W.D. Tex. Oct. 27, 2008) (Garcia, Mag. J.), report and recommendation adopted and dismissal granted, 2009 WL 1069624, *2 (W.D. Tex. Sep. 16, 2009) is also inapposite because of its dissimilarity to this proceeding. In *Castillo*, it was not an FMC proceeding, and even in *Castillo*, significant time had passed with opportunities for the plaintiffs to serve the defendant before dismissal was appropriate. On October 27, 2008 the magistrate recommended dismissal *or* additional time for the plaintiffs to serve defendant, and the district court did not adopt the magistrate's findings and dismiss the case until almost a year

later on September 16, 2009, after the plaintiffs had “over 300 days . . . to properly effect service” and yet still had not completed service.

Here, dismissal is premature. MAC was relying on the Secretary’s service under Rule 502.113. As of the filing of the CIN MTD on August 13, 2026, MAC was made aware of the extent of CIN’s argument that it was not properly served (a contention that MAC disputes). Dismissal would be premature at this stage, when an extension to complete service would suffice, with a status update in forty-five days during which time, MAC can complete service under the Hague Convention.

As Judge Ambrow stated in *Samsung Electronics America*, Dkt 24-17 (ALJ Order, July 10, 2025), “In many instances where a foreign corporation has not been served in compliance with the Hague Convention, *the favored remedy is to allow the plaintiff the appropriate time to properly serve the defendant.*” *Id.* (emphasis added) citing (*Castillo*, 2008 WL 11334092, at *2; *see also Capturion Network, LLC v. Liantronics, LLC*, Civil Act. No. 2:19-cv-13-KS-MTP, 2021 WL 1083180 (S.D. Miss. March 18, 2021); *Brown v. Allen*, Case No. 8:09-cv1504-T-24 EAJ, 2010 WL 11507324, at *1-2 (M.D. Fla. Aug. 17, 2010)).

For these reasons, MAC respectfully requests that the CIN MTD be denied and MAC is granted a reasonable period of time to serve the Amended Complaint by means of the Hague Convention under 46 C.F.R. § 502.113(c).

August 28, 2026

Respectfully submitted,

/s/
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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 28th day of August 2026, the foregoing Response to the CIN
MTD was served via electronic mail on:

Federal Maritime Commission
Office of the Secretary
secretary@fmc.gov

Federal Maritime Commission
The Honorable Erin M. Wirth
Chief Administrative Law Judge
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